

ORDINANCE NO. 1324

AN ORDINANCE OF THE CITY OF KYLE, TEXAS, ORDERING A GENERAL ELECTION TO BE HELD ON NOVEMBER 5, 2024 FOR THE ELECTION OF CITY COUNCIL DISTRICTS FIVE AND SIX TO SERVE THREE-YEAR TERMS; PROVIDING FOR CANDIDATE APPLICATION METHODS, DESIGNATING THE MAIN AND PROVIDING FOR BRANCH EARLY VOTING LOCATIONS FOR SUCH ELECTION; PROVIDING FOR AN ORDER AND NOTICE OF SUCH GENERAL ELECTION; PROVIDING FOR RELATED MATTERS; PROVIDING A SEVERABILITY CLAUSE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the terms for City Council Districts Five and Six are set to expire in November 2024 and there is a need to call for a General Election; and

WHEREAS, there is a need to call for a General Election to fill the seats and prevent vacancies; and

WHEREAS, the Texas Constitution, the *Texas Election Code* (the “Code”), and the City Charter are applicable to said General Elections (hereinafter collectively referred to as the “election” or “elections”), and in order to comply with applicable laws, an ordinance is required to call the elections and establish procedures consistent with the Constitution, the Code, and the Charter; and

WHEREAS, the City has made provision to contract with Hays County, a vote center county, to conduct the City's election, pursuant to *Chapter 31, Tex. Elec. Code*, and *Chapter 791, Tex. Gov't Code* and to conduct the election as a joint election (the “Contracts for Election Services” or “contracts”), and such contracts provide for political subdivisions subject to the contracts that hold election on the same day in all or part of the same territory to hold a joint election as authorized in *Chapter 271, Tex. Elec. Code*;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF KYLE, TEXAS THAT:

SECTION 1. A general municipal election is hereby ordered to be held on Tuesday, November 5, 2024, for the purpose of voting on the office of:

Council Member District 5 (at-large)
Council Member District 6 (single member district)

SECTION 2. Early voting by personal appearance will be conducted on the days and at the final branch early voting locations and vote centers approved by Hays County.

The branch early voting locations may be subject to change by Hays County. The election notice shall list the branch early voting locations finally approved by Hays County, and such locations finally approved by Hays County shall control in the event of a conflict with this section.

SECTION 3. On Election Day, Tuesday, November 5, 2024, the polls shall be open for voting from 7:00 a.m. to 7:00 p.m. at the final branch voting locations and vote centers approved by Hays County.

The branch vote center locations may be subject to change by Hays County. The election notice shall list the branch vote center locations finally approved by Hays County, and the City hereby approves and designates the vote center locations finally approved by Hays County. The branch vote centers finally approved by Hays County shall control in the event of a conflict with this section.

SECTION 4. Applications for ballot by mail shall be mailed to Jennifer Doinoff, Hays County Elections Administrator, 120 Stagecoach Trail, San Marcos, Texas 78666. The Elections Administrator may also be reached at (512) 393-7310 or by electronic mail at elections@co.hays.tx.us. Jennifer Doinoff is hereby designated and appointed as the Early Voting Clerk. The website for the Early Voting Clerk is <https://www.hayscountytexas.com/elections>.

SECTION 5. Applications for ballots by mail must be received no later than the close of business on Friday, October 25, 2024. Federal Post Card Applications must be received no later than the close of business on October 25, 2024.

SECTION 6. The period to file an application to become a candidate in the election for the council member positions to serve a three-year term opened on July 20, 2024, and will close at 5:00 p.m. on August 19, 2024.

An application to become a candidate shall be filed with the City Secretary at Kyle Public Safety Center, 1700 Kohlers Crossing, Kyle, Texas, or by email. The City Secretary shall post more detailed instructions for submitting applications on the City's website and the City's bulletin board. All applications for candidacy shall be on a form as prescribed by the *Texas Election Code*. The order in which the names of the candidates for each office are to be printed on the ballot shall be determined by a drawing conducted by the City Secretary on August 21, 2024.

SECTION 7. The City Council hereby approves the form of the Order of General Election attached hereto as Exhibit A; provided that the Order of General Election may be revised to list the final branch early voting locations and vote centers approved by Hays County. The Mayor is authorized to execute the final Order of General Election.

SECTION 8. Notice of the election shall be given and the election shall be held in compliance with the provisions of the *Texas Election Code* in all respects. The ballots for the election shall comply with the *Texas Election Code* and be in the form provided by the City to the Hays County Election Administrator for use on the voting devices and ballots used by Hays County.

SECTION 9. The Hays County Election Administrator and her employees and appointees, and the election judges, alternate judges, clerks, and ballot board properly appointed for the election, shall hold and conduct the election in the manner provided by the Contracts for Election Services, the City Charter, and the law governing the holding of general elections; and the official ballots, together with such other election materials as are required by the *Texas Election Code*, shall be prepared in both the English and Spanish languages and shall contain such provisions, markings and language as is required by law.

SECTION 10. Early voting, both by personal appearance and by mail, will be conducted by the Hays County Election Administrator, who is designated and appointed as the Early Voting Clerk, in accordance with the *Texas Election Code*.

SECTION 11. The election precincts for the election shall be the election precincts established by the Hays County Election Administrator in accordance with applicable law and the City Charter. Residents of the election precincts shall vote at the aforementioned polling places as assigned by the Hays County Election Administrator in accordance with applicable law and the City Charter. The returns will be provided by precinct and the Hays County Election Administrator shall tabulate and provide the election returns for the election. Ballots shall be prepared, and the election shall be conducted to allow for a District 5, at-large, and District 6, single-member district, to be elected from the city.

SECTION 12. The City agrees to conduct a joint election with other political subdivisions within Hays County, provided that such political subdivision holds an election on November 5, 2024, in all or part of the same territory as the City (the “Political Subdivisions”). Any joint election shall be conducted in accordance with state law, this Ordinance, the City Charter and the Contracts for Election Services with Hays County.

SECTION 13. The City Secretary, or designee, is instructed to aid the Hays County Election Administrator in the acquisition and furnishing of all election supplies and materials necessary to conduct the election as provided by the Contracts for Election Services. The City Secretary is further authorized to give or cause to be given notices required for the election, and to take such other and further action as is required to conduct the election in compliance with the *Texas Election Code*; provided that, pursuant to the Contracts for Election Services between Hays County and the City, the Hays County Election Administrator shall have the duty and be responsible for organizing and conducting the election in compliance with the *Texas Election Code*; and for providing all services specified to be provided in the Contracts for Election Services. The Hays County Election Administrator shall give the notices required by the *Texas Election Code* to be given for the election not required to be given by the City under the Contracts for Election Services.

SECTION 14. The presiding judges, alternate presiding judges, clerks, and ballot board for the election shall be selected and appointed by Hays County and its appointees in compliance with the requirements of state law, and such judges, clerks, and ballot board so selected by Hays County and its appointees are hereby designated and appointed by the City Council as the Election Administrators, judges, clerks, and ballot board respectively, for the holding of said election. The presiding judges, alternate presiding judges, clerks, and ballot board shall perform the functions and duties of their respective positions that are provided by state law. The city council confirms and appoints the election judges and alternate election judges that are appointed by Hays County for the election.

SECTION 15. That notice of the November 5, 2024, General Election of the City of Kyle shall be posted and published in accordance with the Election Code of the State of Texas, not later than the twenty-first (21st) day before the election, and by publishing said Notice of Election at least one time, not earlier than thirty (30) days nor later than ten (10) days prior to said election, in a newspaper of general circulation in the City. The notice that is posted, and the notice that is published in a newspaper of general circulation within the city, will be written in both English and Spanish.

SECTION 16. It is hereby officially found and determined that this meeting was open to the public, and public notice of the time, place and purpose of said meeting was given, all as required by the Open Meetings Act, *Chapter 551, Texas Government Code*.

SECTION 17. Should any part, section, subsection, paragraph, sentence, clause, or phrase contained in this ordinance be held to be unconstitutional or of no force and effect, such holding shall not affect the validity of the remaining portion of this ordinance, but in all respects said remaining portion shall be and remain in full force and effect.

SECTION 18. This ordinance is effective immediately upon adoption in accordance with state law and the City Charter.

PASSED AND APPROVED on this the 6th day of August, 2024.

FINALLY PASSED AND APPROVED on this the 15th day of August, 2024.

ATTEST:

The City of Kyle, Texas


Jennifer Kirkland, City Secretary

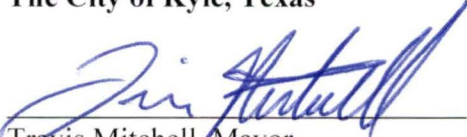

Travis Mitchell, Mayor

EXHIBIT A

ORDER OF GENERAL ELECTION FOR MUNICIPALITIES
ORDEN DE ELECCIÓN GENERAL PARA MUNICIPOS

An election is hereby ordered to be held on 11 / 5 / 2024 for the purpose of voting on:
(date)
(Por la presente se ordena celebrar una elección el 5 / 11 / 2024 con el propósito de votar sobre.)
(fecha)

List Offices/Propositions/Measures on the ballot (<i>Enúmere los puestos/proposiciones/medidas oficiales en la boleta</i>)
Council Member District 5 at-large (Miembro del Consejo Distrito 5 en general)
Council Member District 6 single member (Miembro del Consejo Distrito 5 miembro único)

Early voting by personal appearance will be conducted each weekday at:
(La votación adelantada en persona se llevará a cabo de lunes a viernes en:)

The Main Early Voting Location (*sitio principal de votación adelantada*)

Location (<i>sitio</i>)
Hays County Elections Office, 120 Stagecoach Trail, San Marcos
Hours (<i>horas</i>)
Monday, October 21 – Friday, October 25 9 am – 6 pm (lunes 21 de octubre a viernes 25 de octubre 9 am – 6 pm) Monday, October 28 – Friday, November 1, 7 am – 7 pm (lunes 28 de octubre a viernes 1 de noviembre 7 am – 7 pm)

Branch Early Voting Locations (*sucursal sitios de votación adelantada*)

Location (<i>sitio</i>)
HCISD Academic Support Center, 21003 Interstate 35 Frontage Road Building A, Room #1220, Kyle Kyle City Hall, 100 West Center Street, Kyle Main Office, HCISD Transportation, 2385 High Road, Uhland Yarrington – Hays County Transportation Department, 2171 Yarrington Road, Kyle Buda City Hall – Multipurpose Room, 405 East Loop Street, Building 100, Buda Sunfield Station, 2610 Main Street, Buda Dripping Springs Ranch Park, 1042 Event Center Drive, Dripping Springs Patriots’ Hall of Dripping Springs, 231 Patriots’ Hall Boulevard (formerly listed as 3400 East US 290), Dripping Springs Broadway Polling Location, 401 Broadway Street #A, San Marcos Hays County Elections Office (3) Main Early Voting Site , 120 Stagecoach Trail, San Marcos LBJ Student Center, Texas State University, 301 Student Center Drive, San Marcos Texan Academy at Scudder – Gym, 400 Green Acres Drive, Wimberley Wimberley Community Center – Johnson Hall, 14068 Ranch Road 12, Wimberley
Hours (<i>horas</i>)
Monday, October 21 – Friday, October 25 9 am – 6 pm (lunes 21 de octubre a viernes 25 de octubre 9 am – 6 pm) Monday, October 28 – Friday, November 1, 7 am – 7 pm (lunes 28 de octubre a viernes 1 de noviembre 7 am – 7 pm)

Early voting by personal appearance will be conducted each weekend at:
(La votación adelantada en persona se llevará a cabo en el fin de semana en:)

The Main Early Voting Location (*sitio principal de votación adelantada*)

Location (<i>sitio</i>)
Hays County Elections Office, 120 Stagecoach Trail, San Marcos
Hours (<i>horas</i>)
Saturday, October 26 7am – 7pm (sábado 26 de octubre 7 am – 7 pm) Sunday, October 27 12 pm – 6 pm (domingo 27 de octubre 12 pm – 6 pm)

Branch Early Voting Locations
(sucursal sitios de votación adelantada)

Location (sitio)

HCISD Academic Support Center, 21003 Interstate 35 Frontage Road Building A, Room #1220, Kyle
Kyle City Hall, 100 West Center Street, Kyle
Main Office, HCISD Transportation, 2385 High Road, Uhland
Yarrington – Hays County Transportation Department, 2171 Yarrington Road, Kyle
Buda City Hall – Multipurpose Room, 405 East Loop Street, Building 100, Buda
Sunfield Station, 2610 Main Street, Buda
Dripping Springs Ranch Park, 1042 Event Center Drive, Dripping Springs
Patriots’ Hall of Dripping Springs, 231 Patriots’ Hall Boulevard (formerly listed as 3400 East US 290),
Dripping Springs
Broadway, 401 Broadway Street #A, San Marcos
Hays County Elections Office (3) **Main Early Voting Site**, 120 Stagecoach Trail, San Marcos
LBJ Student Center, Texas State University, 301 Student Center Drive, San Marcos
Texan Academy at Scudder – Gym, 400 Green Acres Drive, Wimberley
Wimberley Community Center – Johnson Hall, 14068 Ranch Road 12, Wimberley

Hours (horas)

Saturday, October 26 7am – 7pm
(sábado 26 de octubre 7 am – 7 pm)
Sunday, October 27 12 pm – 6 pm
(domingo 27 de octubre 12 pm – 6 pm)

Applications for ballot by mail shall be mailed to:

(Las solicitudes para boletas que se votarán adelantada por correo deberán enviarse a:)

Jennifer Doinoff
Name of Early Voting Clerk
(Nombre del Secretario/a de la Votación Adelantada)
120 Stagecoach Trail
Address (Dirección)
San Marcos 78666
City (Ciudad) Zip Code (Código Postal)
512-393-7310
Telephone Number (Número de teléfono)
elections@co.hays.tx.us
Email Address (Dirección de Correo Electrónico)
https://www.hayscountytexas.com/elections
Early Voting Clerk’s Website (Sitio web del Secretario/a de Votación Adelantada)

Applications for Ballots by Mail (ABBMs) must be received no later than the close of business on:
(Las solicitudes para boletas que se votarán adelantada por correo deberán recibirse no más tardar de las horas de negocio el:)

10 / 25 / 2024
(date)(fecha)

Federal Post Card Applications (FPCAs) must be received no later than the close of business on:
(La Tarjeta Federal Postal de Solicitud deberán recibirse no más tardar de las horas de negocio el:)

10 / 25 / 2024
(date)(fecha)

Issued this 15th day of August, 2024.
(day) (month) (year)

(Emitida este día 15 de agosto, 2024.)
(día) (mes) (año)



Signature of Mayor (Firma del Alcalde)

Instruction Note: A copy of this election order must be delivered to the County Clerk/Elections Administrator and Voter Registrar not later than 60 days before election day.
Nota de Instrucción: Se deberá entregar una copia de esta orden de elección al/a la Secretario(a) del Condado/Administrador(a) de Elecciones y el/la Registrador(a) de Votantes a más tardar 60 días antes del día de elección.